

HOUSE No. 303

The Commonwealth of Massachusetts

PRESENTED BY:

Kristin E. Kassner

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to promote community development planning.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>1/17/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/21/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>5/20/2025</i>

HOUSE No. 303

By Representative Kassner of Hamilton, a petition (accompanied by bill, House, No. 303) of Kristin E. Kassner and Carmine Lawrence Gentile for program to assist cities and towns for the purpose of creating community development plans. Community Development and Small Businesses.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to promote community development planning.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: The General Laws are hereby amended by inserting after chapter 40Y the
2 following chapter:-

3 Chapter 40Z

4 COMMUNITY DEVELOPMENT PLANNING

5 Section 1 or the purposes of this chapter the following terms shall have the following
6 meanings:-

7 "Community development plan" - A community development plan is a comprehensive,
8 strategic plan for the future of a city or town, and shall include, among other things, a plan for:
9 new housing opportunities; commercial or industrial economic development (if any); existing
10 infrastructure and needs to serve new uses including but not limited to; water, transportation,

housing, and electricity; transportation infrastructure; climate change and resiliency, and open space.

Section 2. (a) There shall be a Community Development Plan Program, to encourage cities and towns to create community development plans that identify existing conditions and constraints and locations for new housing and economic development opportunities while still preserving the natural resources within their communities.

(b) The Secretaries of the Executive Office of Energy and Environmental Affairs, Executive Office of Economic Development, and Executive Office of Housing and Livable Communities (the "Secretaries") collectively, shall develop and implement a two-year program to provide technical assistance and resources to cities and towns for the purpose of creating community development plans. A community development plan shall include, but not be limited to, (1) Existing inventory of infrastructure, buildings, land use regulations and natural resources; (2) Plans for new housing opportunities, future commercial economic development (if any), improvements to transportation infrastructure, water and utility infrastructure needs and preservation of open space.

c) The Secretaries shall provide assistance to any city or town seeking to create such a plan. Such assistance may include the provision of in-kind services or discretionary funds where appropriate. In developing the program, the Secretaries also shall assist cities and towns seeking to create "regional development plans" that plan for new housing, improved infrastructure, economic development and open space on a regional basis. The commonwealth shall provide an initial appropriation of \$20,000,000 from a direct legislative appropriation or other means thereto to ensure all communities have access to resources needed to complete the plan.

Section 3: Implementation of the Community Development Plan. The Secretaries shall develop and implement a program to give priority in awarding discretionary funds to those cities and towns that have completed the plan and have been determined to be taking steps to increase the supply of housing for individuals and families across a broad range of incomes, opportunities for business and economic development, resiliency plans and infrastructure enhancements . Such steps could include: (a) adopting revisions to local zoning or land use regulations that provide for more intensive housing development, such as, duplexes, accessory apartments, mixed uses of buildings or sites, or multi-family housing; Including but not limited to adopting zoning that increases housing opportunities above existing, adoption of 40R, 40Y or 40A, Section 3A (b) adopting incentive zoning provisions, such as density bonuses for deed-restricted units for low- and moderate-income households; (c) streamlining local permitting processes; (d) providing money or land to underwrite the cost of developing housing for low- and moderate-income households; (e) increasing the supply of housing for low- and moderate-income households by some percentage over existing levels; and (f) providing additional opportunity for economic development growth (g) infrastructure enhancements to provide modernization and additional growth capacity (h) regional planning initiatives across across areas identified in the community development plan.

Section 4: Two years after the enactment of this law the secretaries shall provide a report to the Clerks of the House and the Senate regarding the status of the communities that have created or are in the process of creating community development plans.

Section 5: Community Development Plans shall be completed at least every 10 years.

54 SECTION 2: Section 81D of Chapter 41 is hereby amended to add the following
55 language after subsection (9):- Community Development Plans created under Chapter 40Z may
56 be taken into consideration in the development of the Comprehensive Master Plan.